

DON R. WILLETT, *Circuit Judge*, concurring:

Today’s decision upholding qualified immunity is compelled by our controlling precedent. I write separately only to highlight newly published scholarship that paints the qualified-immunity doctrine as flawed—foundationally—from its inception.¹

For more than half a century, the Supreme Court has claimed that (1) certain common-law immunities existed when § 1983 was enacted in 1871,² and (2) “no evidence” suggests that Congress meant to abrogate these immunities rather than incorporate them.³ But what if there *were* such evidence? Indeed, what if the Reconstruction Congress had explicitly stated—right there in the original statutory text—that it was nullifying all common-law defenses against § 1983 actions? That is, what if Congress’s literal language unequivocally negated the original interpretive premise for qualified immunity? Professor Alexander Reinert argues precisely this in his new article, *Qualified Immunity’s Flawed Foundation*—that courts have been construing the wrong version of § 1983 for virtually its entire legal life.

Wait, what?

¹ Alexander A. Reinert, *Qualified Immunity’s Flawed Foundation*, 111 CAL. L. REV. 201 (2023) (“This Article takes aim at the roots of the doctrine—fundamental errors that have never been excavated.”).

² *Pierson v. Ray*, 386 U.S. 547, 556–57 (1967) (tethering qualified immunity to common-law defenses that existed circa 1871, like subjective good faith). Professor William Baude has challenged this historical premise—forcefully and methodically—arguing that qualified immunity departs significantly from traditional common-law principles. See William Baude, *Is Qualified Immunity Unlawful?*, 106 CAL. L. REV. 45, 49–60 (2018). Professor Joanna Schwartz likewise questions the doctrine’s origins, contending there were no common-law immunities. See Joanna C. Schwartz, *The Case Against Qualified Immunity*, 93 NOTRE DAME L. REV. 1797 (2018).

³ *Briscoe v. Lahue*, 460 U.S. 325, 337 (1983) (“[W]e find no evidence that Congress intended to abrogate the traditional common-law . . . immunity in § 1983 actions.”).